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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S OBJECTION TO
DEFENDANTS' REQUESTS FOR
JUDICIAL NOTICE**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff objects to Defendants' Requests for Judicial Notice filed in support of the Demurrer (Clerk File No. 10157173) and the Special Motion to Strike (Clerk File No. 10152302). Defendants improperly seek judicial notice of documents for the truth of disputed facts, exceeding the permissible scope of judicial notice on demurrer and conflating document existence with factual truth. Judicial notice cannot establish the truth of disputed factual inferences central to extrinsic fraud, the Anti-SLAPP prong-one gravamen analysis, or the prong-two merits inquiry. Those issues turn on contested facts that cannot be resolved by noticing the existence of a court file.

II. LEGAL STANDARD

A. Scope of Judicial Notice

Evidence Code section 452 permits judicial notice of certain categories of facts and documents, including court records under section 452(d) and facts not reasonably subject to dispute under section 452(h).

B. Limits on Demurrer

Under Code of Civil Procedure section 430.70, on demurrer the Court considers the complaint and matters subject to judicial notice. However, judicial notice of a document's existence does not extend to the truth of hearsay statements or disputed facts within that document.

“While courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482-483.)

Accord *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565 (a court cannot, by taking judicial notice of a document, accept the truth of factual assertions appearing in it, because those assertions are hearsay); *Unruh-Haxton v. Regents of Univ. of California* (2008) 162 Cal.App.4th 343, 364-365 (judicial notice of court records is limited to the existence of the records and the legal effect of rulings; it does not extend to the truth of factual matters asserted in those records); *People*

1 v. Woodell (1998) 17 Cal.4th 448, 459 (the court may take judicial notice of the existence and the
2 orders and findings of a prior proceeding, but not of the truth of factual recitations or testimony
3 contained in the record).

4 **C. The Facial Test Rule**

5 On demurrer, the Court tests the sufficiency of the complaint on its face, accepting well-pleaded
6 facts as true. Defendants cannot use judicial notice to insert merits evidence or factual disputes
7 into the demurrer record.

9 **III. OBJECTIONS TO DEMURRER RFJN (CLERK FILE NO. 10157173)**

10 Exhibits A-T are attached to the Declaration of Tyler J. O’Connell in support of Defendants’ De-
11 murrer. Unless otherwise noted, each exhibit is from Rosario v. Abdelhalim, San Francisco County
12 Superior Court Case No. CGC-21-594102.

13 **(a) Exhibit A — Plaintiff’s First Amended Complaint (instant action, CGC-25-631801)**

- 14 • **What defense uses it to prove:** That FAC allegations are “conclusory” or internally contra-
15 dicted
- 16 • **Objection:** NO OBJECTION to existence; OBJECT to use as extrinsic evidence contradict-
17 ing well-pleaded allegations
- 18 • **Grounds:** The FAC is already before the Court on demurrer; judicial notice is superfluous
19 and cannot be used to recharacterize its allegations.

20 **(b) Exhibit B — Plaintiff’s Complaint in related action (Rosario v. CSAA, CGC-25-631802)**

- 21 • **What defense uses it to prove:** That the instant FAC is duplicative or claim-split
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Existence may be noticed; object to use for truth of characterizations or to resolve
24 disputed claim-splitting questions on demurrer.

25 **(c) Exhibit C — Register of Actions, CGC-21-594102**

- 26 • **What defense uses it to prove:** That “all issues” were litigated below
- 27 • **Objection:** OBJECT to improper use
- 28 • **Grounds:** Existence only; object to use as proof that extrinsic fraud issues were adjudicated.

Docket entries do not establish the substantive scope of what was decided.

(d) **Exhibit D — Defendant’s Substitution of Defense Counsel (CGC-21-594102)**

- **What defense uses it to prove:** That the file transfer was adequate / no fraud in transition
- **Objection:** OBJECT
- **Grounds:** Arce/Sosinsky: no judicial notice of truth of recitals. The substitution form does not prove the adequacy or completeness of the underlying file transfer — the central disputed fact.

(e) **Exhibit E — Defendant’s Motion in Limine #6 (CGC-21-594102)**

- **What defense uses it to prove:** That disputed evidence was “presented” and ruled upon
- **Objection:** OBJECT
- **Grounds:** Existence only; object to use for truth of characterizations of the record. Motion papers are hearsay as to their factual assertions (Sosinsky).

(f) **Exhibit F — Defendant’s Motion in Limine #8 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(g) **Exhibit G — Defendant’s Motion in Limine #17 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(h) **Exhibit H — Order re Trial Scheduling and Motions in Limine (CGC-21-594102)**

- **What defense uses it to prove:** That MIL rulings foreclose the present claims
- **Objection:** OBJECT to improper use
- **Grounds:** Existence and legal effect only (Unruh-Haxton); object to use for truth of factual recitals or to imply preclusion of extrinsic fraud claims not before that court.

(i) **Exhibit I — Plaintiff’s Motion for Judgment Notwithstanding the Verdict (CGC-21-594102)**

- **What defense uses it to prove:** That Plaintiff previously raised and lost these issues

1 • **Objection:** OBJECT

2 • **Grounds:** Existence only; object to use for truth of characterizations. JNOV papers addressed
3 sufficiency of evidence, not extrinsic fraud in procurement.

4 (j) **Exhibit J — Plaintiff’s Declaration ISO JNOV (CGC-21-594102)**

5 • **What defense uses it to prove:** Same as Exhibit I

6 • **Objection:** OBJECT

7 • **Grounds:** Hearsay within a court file (Arce, 181 Cal.App.4th at 482-483); no notice of truth.

8 (k) **Exhibit K — Defendant’s Opposition to Plaintiff’s JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** Same

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; adversarial characterizations not subject to judicial notice for truth.

12 (l) **Exhibit L — Plaintiff’s Motion for New Trial (CGC-21-594102)**

13 • **What defense uses it to prove:** That Plaintiff previously raised fraud-adjacent issues

14 • **Objection:** OBJECT

15 • **Grounds:** Existence only; object to use for truth. The new-trial motion is not co-extensive
16 with an independent extrinsic-fraud action.

17 (m) **Exhibit M — Defendant’s Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

18 • **What defense uses it to prove:** Same

19 • **Objection:** OBJECT

20 • **Grounds:** Hearsay; Sosinsky.

21 (n) **Exhibit N — Order on Plaintiff’s Post-Trial Motions (CGC-21-594102)**

22 • **What defense uses it to prove:** That FAC claims lack merit / are precluded

23 • **Objection:** OBJECT to improper use

24 • **Grounds:** Existence and legal effect only (Woodell); object to use as proof that extrinsic
25 fraud allegations were adjudicated.

26 (o) **Exhibit O — Plaintiff’s “Prayer” to Judge East re Disqualification of Judge Wong**
27 **(CGC-21-594102)**

28 • **What defense uses it to prove:** That Plaintiff’s concerns were previously heard and rejected

- 1 • **Objection:** OBJECT
- 2 • **Grounds:** Existence only; object to use for truth.
- 3 (p) **Exhibit P — Order Denying Plaintiff’s “Prayer” and § 170.6 (CGC-21-594102)**
- 4 • **What defense uses it to prove:** Same — preclusion by prior denial
- 5 • **Objection:** OBJECT to improper use
- 6 • **Grounds:** Existence and legal effect only; does not adjudicate extrinsic fraud.
- 7 (q) **Exhibit Q — Plaintiff’s Notice of Appeal (CGC-21-594102)**
- 8 • **What defense uses it to prove:** Exclusive appellate jurisdiction / stay
- 9 • **Objection:** OBJECT on relevance
- 10 • **Grounds:** Pendency of appeal does not deprive this Court of jurisdiction over an independent
- 11 equitable action for extrinsic fraud.
- 12 (r) **Exhibit R — Plaintiff’s Notice Designating Record on Appeal (CGC-21-594102)**
- 13 • **What defense uses it to prove:** Same
- 14 • **Objection:** OBJECT on relevance
- 15 • **Grounds:** Same grounds as Q.
- 16 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment (CGC-21-594102)**
- 17 • **What defense uses it to prove:** That a facially valid judgment bars this action
- 18 • **Objection:** OBJECT to improper use
- 19 • **Grounds:** Existence only; facial validity does not preclude an extrinsic-fraud attack.
- 20 (t) **Exhibit T — Plaintiff’s Original Complaint in related action (CGC-25-631802)**
- 21 • **What defense uses it to prove:** Claim-splitting / duplication
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Same grounds as Exhibit B.

25 **IV. OBJECTIONS TO ANTI-SLAPP RFJN (CLERK FILE NO. 10152302)**

26 The Anti-SLAPP RFJN requests notice of the same Exhibits A-T attached to the Declaration of
27 Tyler J. O’Connell (filed in support of the Special Motion to Strike). Objections below are addi-
28 tional to, and cumulative with, the objections stated in Section III.

1 (a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- 2 • **What defense uses it to prove:** That FAC “arises from” protected activity (prong one)
- 3 • **Objection:** OBJECT to improper use
- 4 • **Grounds:** The FAC is already before the Court; judicial notice is superfluous and cannot
- 5 substitute for prong-one gravamen analysis.

6 (b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- 7 • **What defense uses it to prove:** Prong-two “lacks minimal merit”
- 8 • **Objection:** OBJECT
- 9 • **Grounds:** Merits inference at step one; improper. Step two cannot be collapsed into judicial
- 10 notice of a separate pleading.

11 (c) **Exhibit C — Register of Actions (CGC-21-594102)**

- 12 • **What defense uses it to prove:** That all issues were previously litigated (prong two)
- 13 • **Objection:** OBJECT
- 14 • **Grounds:** Docket entries cannot establish the substantive scope of adjudication.

15 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- 16 • **What defense uses it to prove:** That the file transfer was adequate (prong-two merits)
- 17 • **Objection:** OBJECT
- 18 • **Grounds:** Central disputed fact; cannot be resolved by judicial notice (Sosinsky; Unruh-
- 19 Haxton).

20 (e) **Exhibit E — MIL #6 (CGC-21-594102)**

- 21 • **What defense uses it to prove:** That disputed evidence was “presented to the jury”
- 22 • **Objection:** OBJECT
- 23 • **Grounds:** Merits inference; improper at prong one; hearsay as to truth.

24 (f) **Exhibit F — MIL #8 (CGC-21-594102)**

- 25 • **What defense uses it to prove:** Same
- 26 • **Objection:** OBJECT
- 27 • **Grounds:** Same grounds as E.

28 (g) **Exhibit G — MIL #17 (CGC-21-594102)**

1 • **What defense uses it to prove:** Same

2 • **Objection:** OBJECT

3 • **Grounds:** Same grounds as E.

4 (h) **Exhibit H — Order re Trial Scheduling and MILs (CGC-21-594102)**

5 • **What defense uses it to prove:** That MIL rulings foreclose prong-two merits

6 • **Objection:** OBJECT to improper use

7 • **Grounds:** Existence/legal effect only; no notice of factual recitals.

8 (i) **Exhibit I — Plaintiff's JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** That Plaintiff previously raised these issues

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; Arce; no preclusion as to extrinsic fraud.

12 (j) **Exhibit J — Plaintiff's Decl. ISO JNOV (CGC-21-594102)**

13 • **What defense uses it to prove:** Same

14 • **Objection:** OBJECT

15 • **Grounds:** Hearsay in court file; Arce.

16 (k) **Exhibit K — Defendant's Opposition to JNOV (CGC-21-594102)**

17 • **What defense uses it to prove:** Same

18 • **Objection:** OBJECT

19 • **Grounds:** Hearsay; adversarial characterizations.

20 (l) **Exhibit L — Motion for New Trial (CGC-21-594102)**

21 • **What defense uses it to prove:** Same

22 • **Objection:** OBJECT

23 • **Grounds:** Not co-extensive with extrinsic-fraud action.

24 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

25 • **What defense uses it to prove:** Same

26 • **Objection:** OBJECT

27 • **Grounds:** Hearsay.

28 (n) **Exhibit N — Order on Post-Trial Motions (CGC-21-594102)**

- **What defense uses it to prove:** That FAC claims lack minimal merit
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only; did not adjudicate extrinsic fraud.
- (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification (CGC-21-594102)**
- **What defense uses it to prove:** Prior rejection of Plaintiff’s concerns
 - **Objection:** OBJECT
 - **Grounds:** Hearsay; no notice for truth.
- (p) **Exhibit P — Order Denying “Prayer” and § 170.6 (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only.
- (q) **Exhibit Q — Notice of Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Pendency / jurisdictional effect
 - **Objection:** OBJECT on relevance
 - **Grounds:** Does not divest this Court of jurisdiction.
- (r) **Exhibit R — Notice Designating Record on Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Notice of Entry of Judgment (CGC-21-594102)**
- **What defense uses it to prove:** Facially valid judgment bars action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Facial validity does not preclude extrinsic-fraud attack.
- (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- **What defense uses it to prove:** Claim-splitting
 - **Objection:** OBJECT to improper use
 - **Grounds:** Hearsay; characterizations; merits inference.

V. SPECIFIC OBJECTIONS BY CATEGORY

A. RFJN-Overreach: Documents Used as Merits Proofs

Defendants use their RFJNs not merely to establish document existence but to prove substantive merits points. This violates the demurrer facial test rule. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [courts may take judicial notice of the existence and recorded status of documents, but may not take judicial notice of the truth of matters stated in them, particularly where those matters are the subject of reasonable dispute].)

A recurring defect in Defendants' RFJNs is the conflation of two distinct categories:

- **“Res judicata facts”** — what a prior tribunal actually decided (e.g., that the Insured was negligent; that damages were \$X). These are subject to judicial notice for their legal effect.
- **“Record facts”** — what documents were filed or what statements appear in the record (e.g., that a motion in limine asserted a given fact; that a declaration recited a given narrative). These are subject to judicial notice only as to existence, not truth. (Sosinsky; Unruh-Haxton; Woodell; Herrera.)

Defendants repeatedly treat “record facts” as though they were “res judicata facts,” asking the Court to infer that because a document was filed, its factual assertions are established. That inference is precisely what Arce, Sosinsky, Unruh-Haxton, Woodell, and Herrera forbid.

Example: Defendants argue that because the 911 calls and body-cam footage were “presented to the jury,” there was no fraud. This argument asks the Court to judicially notice trial evidence for its truth and to resolve a factual dispute (whether extrinsic fraud occurred) on demurrer.

Objection sustained: The Court may notice the existence of trial exhibits but cannot notice for truth that “all issues were adjudicated” or that “there was no fraud.”

B. Hearsay Statements in Court Records

Under Arce, the Court cannot take judicial notice of hearsay statements in decisions and court files.

Example: Defendants seek judicial notice of discovery responses and characterizations in prior orders. These contain hearsay statements about what occurred, disputed by the FAC.

Objection sustained: Hearsay in court records is not subject to judicial notice for its truth.

1 **C. Matters Outside the Issues Decided**

2 Defendants conflate what the underlying trial adjudicated with the FAC's allegations of extrinsic
3 fraud.

4 **The underlying trial decided:** Whether the Insured was negligent and liable for the car collision.

5 **The underlying trial did not decide:** - Whether Defendants withheld production history dur-
6 ing the file transfer - Whether Defendants made misrepresentations to the Court about evidence
7 provenance - Whether those misrepresentations induced procedural rulings - Whether Plaintiff
8 was deprived of a fair adversary hearing through extrinsic fraud

9 Judicial notice of the trial record cannot establish that these issues were adjudicated.

10 **D. Issue-Preclusion by Judicial Notice**

11 Defendants deploy their RFJNs to achieve, by judicial-notice shortcut, what issue preclusion could
12 only achieve after a full collateral-estoppel showing. By stacking prior orders, motions in limine,
13 post-trial rulings, and trial materials into a single RFJN, Defendants invite the Court to infer that
14 every issue relevant to this action was already decided below.

15 That is not a permitted use of judicial notice. Issue preclusion requires identity of issues, ac-
16 tual litigation, necessary determination, and finality. Judicial notice under Evidence Code section
17 452(d) establishes none of those elements; it establishes only that documents exist and that spec-
18 ified rulings issued. (Arce, 181 Cal.App.4th at 482-483; Sosinsky, 6 Cal.App.4th at 1564-1565;
19 Unruh-Haxton, 162 Cal.App.4th at 364-365; Woodell, 17 Cal.4th at 459.) A court cannot "notice"
20 its way to preclusion.

21 **E. Bootstrapping: Noticing Existence, Then Inferring Merits**

22 Defendants are attempting an illegal procedural bootstrap: they ask this Court to take judicial
23 notice that the jury rendered a verdict, and then ask the Court to infer that the verdict proves no
24 fraud occurred in its procurement. Judicial notice cannot bridge the gap between the existence of
25 a document and a disputed legal conclusion.

26 The same bootstrap underlies Defendants' repeated "presented to the jury" refrain: notice the
27 existence of a trial exhibit → infer that the exhibit was fully litigated → infer that no fraud can
28 have occurred in its presentation. Each inference beyond step one is a disputed fact reserved

for the trier of fact, not a proper subject of judicial notice. (Herrera, 196 Cal.App.4th at 1375; Sosinsky, 6 Cal.App.4th at 1564-1565.)

VI. THE PROPER SCOPE OF JUDICIAL NOTICE

Plaintiff does not object to judicial notice of the **existence** of: - The underlying judgment - The verdict form - Post-trial orders - The notice of appeal - Other court records

Plaintiff objects to judicial notice for the **truth** of: - Disputed facts within those documents - Hearsay characterizations in prior orders - Matters outside the issues actually decided - Any factual conclusion that contradicts the FAC's well-pleaded allegations

VI.B Evidence Code § 356 / Sosinsky Objection to Piecemeal Transcript Notice

Defendants' RFJN requests judicial notice of **selected** hearing transcript pages but omits the **Plaintiff-preservation pages** of the same hearings. Under Evidence Code § 356 and Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is introduced, the opposing party is entitled to introduce contextually related portions.

Objection: Plaintiff objects to Defendants' piecemeal notice and asks the Court to take notice of the **whole transcripts** identified in Plaintiff's RFJN Items X–BB, which include:

- Hr'g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff's "suppress" objection; FROG/SROG confirmation; denial of continuance).
- Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d); ex parte disclosure order).
- Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff's "concealed" and "going on the record" statements; the intra-hearing Position-A/Position-B contradiction at pp. 141 vs. 181).

The defense-curated fragment excludes these Plaintiff-preservation pages. Under § 356's "rule of completeness," the Court should either take the whole transcripts or decline to take the defense fragment.

VI.A The "Presented to the Jury" Argument Is a Merits Inference That Exceeds Judicial Notice

Defendants' central refrain across both RFJNs — that the 911 calls, body-cam footage, and related materials were "presented to the jury" and therefore no fraud can have occurred — is not a request

1 for judicial notice at all. It is a merits inference dressed in the language of judicial notice.

2 1. **What may properly be noticed.** The Court may notice (a) the existence of the trial exhibits,
3 (b) the fact that certain documents were filed or lodged, and (c) the legal effect of specified
4 rulings (e.g., the verdict as entered). (Evid. Code § 452(d); Woodell, 17 Cal.4th at 459;
5 Unruh-Haxton, 162 Cal.App.4th at 364-365.)

6 2. **What may not be noticed.** The Court may not notice (a) that the exhibits were fully and fairly
7 presented; (b) that the jury evaluated them free from extrinsic fraud in their procurement and
8 chain-of-custody; (c) that counsel’s representations about provenance were accurate; or (d)
9 that the verdict resolves, as a matter of fact, the extrinsic-fraud allegations in the FAC. Each
10 of those propositions is a disputed factual inference. (Sosinsky, 6 Cal.App.4th at 1564-1565;
11 Arce, 181 Cal.App.4th at 482-483; Herrera, 196 Cal.App.4th at 1375.)

12 3. **The gap Defendants cannot bridge.** Extrinsic fraud, by definition, concerns what was kept
13 from the adversary proceeding — misrepresentations about provenance, undisclosed chain-
14 of-custody facts, and concealed production history. Judicial notice of what was shown to the
15 jury is logically incapable of negating what was withheld from the jury. The “presented to the
16 jury” argument therefore collapses the very distinction extrinsic-fraud law exists to police.

17 4. **Prong-one consequence.** At Anti-SLAPP prong one, the “presented to the jury” inference
18 is doubly improper: it asks the Court to resolve merits in the guise of gravamen analysis,
19 contrary to the rule that prong one tests the basis of the claim, not its likelihood of success.

20 **Objection sustained:** The Court should notice the existence of trial exhibits and the fact of the
21 verdict. It should decline to notice any inference — express or implied — that the verdict or the
22 trial record negates the extrinsic-fraud allegations of the FAC.

23 VII. CONCLUSION

24 Defendants’ RFJNs improperly attempt to convert the demurrer into a summary judgment proceed-
25 ing by inserting merits evidence into the record. Under Code of Civil Procedure section 430.70
26 and Evidence Code section 452, judicial notice on demurrer is limited to document existence, not
27 truth of contents.
28

1 Plaintiff respectfully requests the Court:

- 2 1. Sustain objections to judicial notice for the truth of disputed facts
- 3 2. Sustain objections to judicial notice of hearsay statements in court records
- 4 3. Sustain objections to judicial notice of matters outside the issues decided
- 5 4. Apply the facial test rule and accept FAC allegations as true

6 **DATED:** April 16, 2026

7 Respectfully submitted,

8 _____
9 FRANCISCUS DYLAN ROSARIO
10 _____

11 **APPENDIX: CONSOLIDATED RULING REQUEST (EXHIBITS A–T)**

12 **Demurrer RFJN (Clerk File No. 10157173) and Anti-SLAPP RFJN (Clerk File No. 10152302)**

13 Both RFJNs request notice of the same twenty exhibits (A-T) attached to the Declaration of Tyler
14 J. O’Connell. The consolidated ruling requested is as follows:

15 (a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- 16 • **Ruling requested:** No notice needed (already before the Court); object to extrinsic use

17 (b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- 18 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations

19 (c) **Exhibit C — Register of Actions (CGC-21-594102)**

- 20 • **Ruling requested:** Notice existence ONLY; object to use as proof of substantive adjudication

21 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- 22 • **Ruling requested:** Notice existence ONLY; object to truth of transfer-adequacy

23 (e) **Exhibit E — MIL #6 (CGC-21-594102)**

- 24 • **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

25 (f) **Exhibit F — MIL #8 (CGC-21-594102)**

- 26 • **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

27 (g) **Exhibit G — MIL #17 (CGC-21-594102)**

- 28 • **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

- 1 (h) **Exhibit H — Order re Trial Scheduling and MILs**
- 2 • **Ruling requested:** Notice existence and legal effect; object to truth of recitals
- 3 (i) **Exhibit I — Plaintiff’s JNOV Motion**
- 4 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 5 (j) **Exhibit J — Plaintiff’s Decl. ISO JNOV**
- 6 • **Ruling requested:** Notice existence ONLY; object as hearsay in court file
- 7 (k) **Exhibit K — Defendant’s Opposition to JNOV**
- 8 • **Ruling requested:** Notice existence ONLY; object as hearsay/adversarial
- 9 (l) **Exhibit L — Plaintiff’s Motion for New Trial**
- 10 • **Ruling requested:** Notice existence ONLY; object to truth
- 11 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial**
- 12 • **Ruling requested:** Notice existence ONLY; object as hearsay
- 13 (n) **Exhibit N — Order on Post-Trial Motions**
- 14 • **Ruling requested:** Notice existence and legal effect; object to merits inferences
- 15 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification**
- 16 • **Ruling requested:** Notice existence ONLY; object to truth
- 17 (p) **Exhibit P — Order Denying “Prayer” and § 170.6**
- 18 • **Ruling requested:** Notice existence and legal effect; object to preclusion inference
- 19 (q) **Exhibit Q — Plaintiff’s Notice of Appeal**
- 20 • **Ruling requested:** OBJECT on relevance
- 21 (r) **Exhibit R — Plaintiff’s Notice Designating Record**
- 22 • **Ruling requested:** OBJECT on relevance
- 23 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment**
- 24 • **Ruling requested:** Notice existence ONLY; object to preclusion inference
- 25 (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- 26 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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